

While the mere service of responses following a motion to compel does not necessarily render the motion moot (see, *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 406 [held: trial court did not abuse its discretion in ruling on a motion to compel responses *pursuant to* 2030.290 where responding party served responses *after* filing of motion]), the Court finds that Piner's service of *substantive* answers and a significant volume of documents renders each of Ms. Kilgore's requests, save that for monetary sanctions, MOOT.

The Court acknowledges Ms. Kilgore's assertions that certain of the answers set forth in the supplemental responses are deficient for various reasons, and that no documents responsive to certain Requests for Production have been produced. (See Reply at 2:8-5:5.) The adequacy of these answers is not formally before the Court on the instant Motion; Considering these issues would deprive Piner's of due process in the form of an opportunity to respond. The parties are *urged* to meet and confer in good faith to resolve these remaining disputes.

The Court further finds that imposition of monetary sanctions, under the circumstances, would be unjust. Ms. Kilgore served a substantial number of discovery requests together. While Piner's did not produce responses by the deadlines set by the Civil Discovery Act, the Court finds that it did proceed with diligence to collect the information and documents, and prepare and serve responses. Moreover, the Court finds that Piner's counsel was communicative with Ms. Kilgore's counsel continuously through the process.

Trial preference necessarily increases the time pressures associated with litigation. In the context of these pressures, the Court acknowledges Ms. Kilgore's need to bring the instant motion as a hedge against the possibility that Piner's was not diligently working to produce responses and documents as counsel was representing. However, in light of the fact that Piner's was diligently working towards that production, the Court finds that an award of monetary sanctions would be unjust.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In the Matter of Daniel M. Lennox Special Needs Trust

18PR000271

PETITION FOR APPROVAL OF NINTH ACCOUNT AND REPORT OF TRUSTEE AND
APPROVAL OF TRUSTEE'S FEES

TENTATIVE RULING: The petition is GRANTED, including fees as prayed.

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Estate of Ronald Edward Gregg

25PR000123

STATUS HEARING RE: FINAL DISTRIBUTION (Prob. Code, § 16600)

APPEARANCE REQUIRED. Pursuant to Probate Code section 12200, a personal representative is required to either petition for an order for final distribution of the estate or make a report of status of administration not later than one year after the date of issuance of letters. There is no petition for final distribution or status report on file. Appearance is required to show the condition of the estate, the reasons why the estate cannot be distributed and closed, and an estimate of time needed to close administration of the estate. (Prob. Code, § 12202, subd. (a).)

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Estate of Roy F Clark

25PR000263

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF COMPENSATION FOR ORDINARY SERVICES, AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The December 02, 2026, Status Hearing Re: Final Distribution is therefore VACATED.

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In The Matter of The Marjorie L Watson 2014
Revocable Living Trust

26PR000029

FIRST ACCOUNT AND REPORT OF TRUSTEE

APPEARANCE REQUIRED. Petitioner, Objector, and any other “interested person” who wishes to “request time for filing a response to the petition, for discovery proceedings, or for other preparation for the hearing” shall appear prepared to discuss whether any additional opposition is anticipated, whether the parties intend to submit on verified pleadings and affidavits (see *Evangelho v. Presoto* (1998) 67 Cal.App.4th 615, 620), whether any discovery or other pre-hearing practice is anticipated, and whether the parties are willing to participate in alternative dispute resolution proceedings. (Prob. Code, § 852 [mandating that the court “shall grant a continuance for a reasonable time” where any interested person appears at the hearing to request an extension of time].)

Should any party desire an evidentiary hearing, the parties shall be prepared to provide the Court with an estimate for the length of the hearing, and to set the hearing on the Court’s calendar.

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